

Court No. - 37

Case :- WRIT - C No. - 26497 of 2012

Petitioner :- Pratap Singh

Respondent :- State Of U.P. Thru Collector/D.M. And Others

Petitioner Counsel :- Surendra Singh

Respondent Counsel :- C.S.C.,Nripendra Mishra

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

Put up on 28.5.2012, as unlisted.

Order Date :- 25.5.2012

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We have heard learned counsel for the petitioner. Shri Nripendra Misra appears for the respondents.

The petitioner is running a floor mill. He has a electricity connection with demand of 33KVA for which LMV 6 Rate Schedule is applicable. It was increased to 40 KVA by depositing requisite amount on 4.12.2009.

By this writ petition the petitioner prayed for direction to quash citation dated 19.3.2012 for recovering Rs.2,08,113/- and other dues and towards balance of the electricity dues including minimum guarantee charges.

The petitioner has received a bill dated 26th February, 2012 raising net bill amount of Rs.4,24,985/-, which includes the arrears and LPS charges, giving rise to this writ petition.

Learned counsel for the petitioner submits that the electricity was disconnected in the month of November, 2011. The petitioner has not consumed the electricity, thereafter. The department has dismantled the meter and thus the demand is arbitrary and unjustified.

We do not find that the petitioner has made any representation to the department stating the facts, which are pleaded in the writ petition.

The petitioner has remedies to approach the Executive Engineer under Para 6.5 of the U.P. Electricity Supply Code, 2005 raising his grievances. He also has remedies thereafter to approach the Electricity Consumer Grievance Redressal Forum for raising the issues.

This writ petition filed to correct the bills directly in the High Court without first exhausting the statutory remedies available under the Electricity Act, 2003 is **dismissed**.

Order Date :- 28.5.2012

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